
Legal and Contracts Memorandum — Validity and Merits of Notice of Dissatisfaction CTR-NRB4-0098

Nandira River Bridge Project — Package NRB-4

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From:	Meridian Engineering Consultants, Contracts Section
To:	Project File
CC:	National Highways Infrastructure Authority

Subject: Notice of Dissatisfaction CTR-NRB4-0098 — Procedural and Substantive Review

1. **PROCEDURAL VALIDITY:** CTR-NRB4-0098 was issued 25-Mar-2022, 21 days after ENG-NRB4-0038 (04-Mar-2022), within the 28-day period under Sub-Clause 20.4. It identifies the determination in dispute with sufficient particularity and confirms no factual matter is contested. We assess the Notice as procedurally valid.
2. **SUBSTANTIVE REVIEW:** We have re-examined the interpretive question addressed in Contract Interpretation Memorandum CIM-NRB4-002 in light of the specific grounds raised in CTR-NRB4-0098. The Contractor's position rests on characterising Variation VO-NRB4-004 by reference to its cause (an Employer-side ground condition) rather than its contractual treatment once instructed and valued. Sub-Clause 13.3 draws no such distinction: a Variation, once valued, is included in the amount due under Sub-Clause 14.3 in the same manner as any other item. Contract Data Section 6 similarly draws no distinction by origin. We find no textual basis in the Contract for the interpretation advanced in CTR-NRB4-0091 and CTR-NRB4-0098, and no provision that would support treating any Variation differently from other certified work for Retention purposes.
3. **CONCLUSION:** The Notice of Dissatisfaction is procedurally valid and properly before the Parties for resolution. On the merits, however, we see no basis to depart from the determination in ENG-NRB4-0038. We recommend the Employer maintain its position in any amicable discussion under Sub-Clause 20.5, while remaining open to hearing any further textual argument the Contractor may raise that has not already been addressed in CIM-NRB4-002 or this memorandum.

Prepared by: Contracts Section, Meridian Engineering Consultants